

24STCV18400 24STCV18400

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 24STCV18400 Hearing Date: June 23, 2026 Dept: 617

Dept.

617

Date:

6-23-26

Case

#: 24STCV18400

Trial

Date: None Set

STAY

MOVING

PARTY: Cross-Defendant, Weston Coppola Cage

RESPONDING

PARTY: Defendant/Cross-Complainant, Equity Residential Management, LLC and

Defendant ERP Operating Limited Partnership

RELIEF

REQUESTED

Motion

to Stay

SUMMARY

OF ACTION

Plaintiffs

Christine Fulton (originally suing as “Jane Doe”) and

Rohit Jagadish filed a First Amended Complaint against Defendants Equity

Residential Management, LLC (Equity), ERP Operating Limited Partnership, and

Professional Security Consultants after they were attacked by Fulton’s son, Weston

Coppola Cage, at STOA Apartments. Equity operates STOA Apartments and

Professional Security Consultants provides on-site security for the building.

Plaintiffs allege the attack lasted approximately 40 minutes and was captured

in real time on the building’s surveillance system. Despite this, no security

personnel ever arrived or intervened. Plaintiffs assert multiple negligence

claims as well as a cause of action for intentional infliction of emotional

distress against Defendants. Equity filed a cross-complaint against Cage for

indemnification.

RULING: Denied without

prejudice.

Request for Judicial Notice:

Granted.

The Court takes judicial notice of

the docket in the instant action and of the existence of documents filed in

this case and other cases. (Lockley v. Law Office of Cantrell, Green,

Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) Judicial notice

is also taken of the existence of orders in this case and in The People of

the State of California v. Weston Coppola Cage (24CJCF04046) and the truth

of the results reached therein. (Id. at pp. 885-86.)

Cross-Defendant

Cage moves to stay proceedings in the instant action as to him due to a pending

criminal prosecution against him concerning the alleged incident at STOA

Apartments. He argues that discovery would violate his right against

self-incrimination under the United States and California Constitutions as his

responses may incriminate him and cause his mental health diversion to be

terminated, possibly subjecting him to a county jail or state prison sentence. Defendants

Equity and ERP oppose the proposed stay to the extent it does not apply to all

parties and related case Fulton v. Cage (25STCV04638). They further

argue that Cage has not sufficiently demonstrated a stay is warranted. Cage's

motion is denied without prejudice.

“Trial courts generally have the

inherent power to stay proceedings in the interests of justice and to promote

judicial efficiency.” (Freiberg v.

City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489; see OTO,

L.L.C. v. Kho (2019) 8 Cal.5th 111, 141 [“[A] court ordinarily has inherent

power, in its discretion, to stay proceedings when such a stay will accommodate

the ends of justice”]; Cooper v. Superior Court In and For Los Angeles

County (1961) 55 Cal.2d 291, 301; Bailey v. Fosca Oil Co. (1963) 216

Cal.App.2d 813, 817.)

“Courts that are confronted with a

civil defendant who is exposed to criminal prosecution arising from the same

facts ‘weigh the parties’ competing interests with a view toward accommodating

the interests of both parties, if possible.” (Fuller v. Superior Court

(2001) 87 Cal.App.4th 299, 307.) One accommodation available in the Court’s judicial

toolbox is stay of the civil proceeding until disposition of the criminal

prosecution. (Id. at p. 307.) In making this decision, the Court

considers: (1) “the extent to which the defendant’s fifth amendment rights are

implicated”; (2) “the interest of the plaintiffs in proceeding expeditiously

with this litigation or any particular aspect of it, and the potential

prejudice to plaintiffs of a delay"; (3) "the burden which any particular aspect of the proceedings may impose on defendants"; (4) "the convenience of the court in the management of its cases, and the efficient use of judicial resources" (5) "the interests of persons not parties to the civil litigation"; and (6) "the interest of the public in the pending civil and criminal litigation." (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885.) Rather than an issue of constitutional dimension, the question of whether to stay the proceeding is an issue of abuse of discretion. (*Id.* at pp. 885-87.)

A stay is not warranted here. Regarding Cage's diversion, there is no concern that discovery will implicate his right against self-incrimination as the instant case concerns his alleged conduct prior to diversion. The extent to which his right is implicated as to questions about the alleged assault is not entirely clear because Cage does not point to any objectionable questions propounded in discovery. Whether the privilege against self-incrimination may be invoked "is for the court to decide after conducting 'a particularized inquiry, deciding, in connection with each specific area that the questioning party seeks to explore, whether or not the privilege is well founded.'" (*Fuller, supra*, 87 Cal.App.4th at p. 305.) Rather than delaying the case for nearly a year (assuming Cage complies with the conditions of his diversion), the preferable course is for discovery to

proceed. This will permit Cage to object to particular questions and will provide the Court with the specific facts necessary to determine the validity of the objections as well as any issues of waiver. The risk of unneeded delay is particularly present here as it is unclear whether Cage stipulated to liability as part of his diversion, which would undercut concerns of self-incrimination.

The Court therefore declines to stay the instant action and Cage's motion is denied without prejudice.

This order in no way relieves Cage from any purported waiver of his privilege against self-incrimination.

Cage to give notice.